§ 14 · RESEARCH

Regulatory EU

Health claims regulation, ~260 approved claims, Green Claims Directive, VAT OSS, cross-border rules.

Scope: EU-wide rules that affect Alche when it sells beyond Germany — to Austria, France, Netherlands, Italy, and the rest of the EU. Covers health claims, cross-border notification, VAT via OSS, sustainability claims, and DSGVO for cross-border users. **Last research sweep:** April 2026.

---

1. Regulation (EC) No 1924/2006 — Health Claims

Purpose and scope

Regulation (EC) 1924/2006 (Nutrition and Health Claims Regulation, "NHCR") applies since 1 July 2007. It harmonises across all 27 EU Member States + EEA the rules for what can be said on food labels, advertising, and online product pages about nutrition and health benefits. It governs: - Nutrition claims (e.g., "low fat", "high fibre") — governed by Annex of the Regulation - Health claims (see below) — governed by Articles 13, 14, and the EU Register

The three health claim categories

TYPE	LEGAL BASIS	EXAMPLE	HOW AUTHORIZED
Article 13(1) — **general function claims**	List established by Reg. 432/2012, updated regularly	"Vitamin D contributes to normal function of the immune system"	Pre-authorized list, verbatim use
Article 13(5) — **new function claims based on emerging science/proprietary data**	Individual application via competent authority → EFSA → Commission	New probiotic strain claim	Individual EFSA opinion + Commission regulation
Article 14(1)(a) — **reduction of disease risk claims**	Individual application	"Plant stanol esters reduce cholesterol; cholesterol is a risk factor in CHD"	Individual authorization, strict evidence
Article 14(1)(b) — **children's development claims**	Individual application	Growth/development claim for formula	Individual authorization

EFSA role

EFSA evaluates the scientific evidence. Applications flow: company → Member State competent authority (in Germany, the BVL) → EFSA scientific opinion → Commission decision → publication in EU Register.

The Register

The **EU Register of Health Claims** (`food.ec.europa.eu/food-safety/labelling-and-nutrition/nutrition-and-health-claims/eu-register-health-claims_en`) is the authoritative lookup. It lists: - Authorized claims with exact wording and conditions of use - Non-authorized claims (for reference) - On-hold claims (see botanical section below)

Tally (as of late 2025)

- **~260 approved** generic function claims out of ~4,637 submitted
- **~2,000+ rejected** — EFSA's scientific bar is high
- **~1,548 botanical claims still "on hold"** — see next section
- Recent additions include **kiwifruit claim (July 2025)** on "consumption of green kiwifruit contributes to normal bowel function"
- Recent rejection: **citicoline** for memory (Commission Regulation (EU) 2025/2223)

Sources: - EUR-Lex — Regulation 1924/2006 consolidated - EU Register of Health Claims - EFSA — Health claims overview - EFSA — Health claims Article 13 - Commission Regulation (EU) 2025/2223 — Citicoline rejection

---

2. Article 13(1) "Function Claims" — Practical Guide

Use requirements

1. Product must contain the authorized nutrient/substance in the **minimum quantity per serving** specified in the Register (conditions of use).
2. Wording must be used **verbatim** or in a form that clearly conveys the same meaning without amplifying the claim.
3. Claim must be accompanied by: - A statement on varied/balanced diet and healthy lifestyle - Quantity and pattern of consumption required to obtain the claimed effect - Warning/limitation for groups that should avoid the food - Warning on risk of excess consumption

Common claim examples useful for a supplement retailer

- "**Magnesium** contributes to normal energy-yielding metabolism / reduction of tiredness and fatigue / normal functioning of the nervous system / normal muscle function / normal protein synthesis / normal psychological function / maintenance of normal bones and teeth / electrolyte balance"
- "**Vitamin D** contributes to normal absorption/utilisation of calcium and phosphorus / normal blood calcium levels / maintenance of normal bones and teeth / normal muscle function / normal function of the immune system"
- "**Zinc** contributes to normal function of the immune system / normal cognitive function / normal fertility and reproduction / maintenance of normal hair, skin and nails / etc."
- "**Vitamin B12** contributes to normal energy-yielding metabolism / reduction of tiredness and fatigue / normal red blood cell formation / normal function of the immune system / normal homocysteine metabolism"
- "**Vitamin C** contributes to normal function of the immune system / normal collagen formation for the normal function of bones, teeth, skin / normal energy-yielding metabolism"
- "**Iron** contributes to normal cognitive function / normal energy-yielding metabolism / normal formation of red blood cells and haemoglobin / normal oxygen transport in the body"
- "**Omega-3 (EPA/DHA)**" has limited authorized claims — DHA ≥250 mg/day: "contributes to maintenance of normal brain function / normal vision"; EPA+DHA ≥250 mg/day: "normal function of the heart"

Each claim has specific minimum content requirements — check the Register.

Source: EU Register of Health Claims

---

3. Structure/Function vs Disease Claims — The Legal Line

The line

EU law (LMIV Art. 7, NHCR Art. 2) prohibits any claim that attributes properties of **preventing, treating, or curing a human disease** on food products. Structure/function claims describing normal body function maintenance are allowed (within the Register). Disease claims push a product into medicinal product territory, triggering a completely different regulatory regime (EU Medicinal Products Directive 2001/83/EC, national authorisation by BfArM in Germany, ANSM in France, AIFA in Italy, CBG-MEB in Netherlands).

Concrete contrasts

ALLOWED (STRUCTURE/FUNCTION)	FORBIDDEN (DISEASE)
"Vitamin D contributes to the maintenance of normal bones"	"Vitamin D treats osteoporosis"
"Omega-3 contributes to normal heart function"	"Omega-3 prevents heart disease"
"Magnesium contributes to reduction of tiredness and fatigue"	"Magnesium cures chronic fatigue"
"Ashwagandha helps relaxation" (on-hold, risky)	"Ashwagandha treats anxiety disorder"

Authorised risk-reduction claims (Art. 14(1)(a)) are the exception

A small number of claims explicitly reference disease risk — these require individual authorization and specific wording: - Plant sterols / stanols → blood cholesterol → coronary heart disease - Oat beta-glucan → blood cholesterol → coronary heart disease - Chewing gum with xylitol → dental caries risk reduction

These are the **only** valid bridges to any disease-related claim on a supplement.

Implicit claims also regulated

Regulation 1924/2006 covers both **explicit and implicit** claims. Product names like "ImmuneBoost" or "StressRelief" can be challenged as implicit health claims requiring substantiation. Brand naming is regulated territory.

National enforcement divergence

Even though the regime is harmonized, enforcement varies: - **Germany**: Wettbewerbszentrale and Verbraucherzentrale actively pursue Abmahnungen (fast private enforcement) - **France**: DGCCRF does regular market sweeps, ANSES issues risk opinions - **Italy**: NAS (Carabinieri) conducts sweeps, sometimes with product seizures - **Netherlands**: NVWA relatively lenient but responds to complaints

Sources: - European Commission — Health Claims - GreenPharm — Dietary supplement claims EU/US/UK guide - BF-Esse — How to use health claims for food supplements in the EU

---

4. On-Hold Botanical Claims — Persistent Grey Zone

Background

In 2012, the Commission suspended EFSA assessment of ~1,548 botanical-related health claims. EFSA couldn't reconcile traditional-use evidence with the pharmacology-style scientific threshold the Commission demanded. Since then: no resolution, the claims sit in permanent limbo.

Current legal status (April 2026)

- On-hold claims are **not authorized** but benefit from Article 28(5) transitional provisions — they can be used pending final decision.
- Member States interpret this differently. Most tolerate use with a "pending evaluation" disclaimer; enforcement escalates when claims become too aggressive.
- **CJEU Case C-386/23** (Novel Nutriology, 2024) — upheld that using unauthorized on-hold claims violates Art. 10 NHCR. The ruling addressed saffron/melon extract for mood.
- **ECJ ruling of 30 April 2025** — reinforced that health claims on plant substances need scientific substantiation and Commission authorization. Hardens the line further.

The catch-22

- To trigger the claim, botanical must be used at a **pharmacological dose** (meeting "conditions of use")
- But at pharmacological doses, the product may be reclassified as a medicinal product (prohibited without authorization)
- Below pharmacological dose: claim conditions not met → can't use claim anyway

Practical approach for Alche

- **Default position**: avoid botanical health claims in marketing copy and on labels
- If botanical is the hero ingredient: describe traditionally in cultural/historical terms ("used in Ayurveda for centuries"), not with health claims
- Do not use the on-hold claim wording even with "pending" disclaimer — the 2024/2025 rulings have narrowed this path
- Consider the claim only via added vitamins/minerals (e.g., an ashwagandha product with added B-vitamins can claim B-vitamin benefits)

Sources: - Mills & Reeve — On-hold botanical claims EU challenge - Nutraceuticals World — Botanical Health Claims in the EU - Vita Foods Insights — On-hold botanical claims inch closer - Food Compliance International — ECJ judges on appeal case (C-386/23) - PMC — Dutch CJEU case law on botanical health claims

---

5. Cross-Border Sales — Country-Specific Rules

The Mutual Recognition Regulation (EU 2019/515) means goods lawfully marketed in one Member State should flow freely — but supplements have carved-out exceptions via national notification, botanical lists, and language requirements. Country-by-country:

Austria 🇦🇹

- **Notification**: Generally **not required** — Austria is in the group of Member States that doesn't exercise the Art. 10 notification option.
- **Language**: German mandatory (Alche's German labels work directly).
- **Practical**: The easiest EU market to enter from Germany. Same labeling, same language, similar consumer norms.
- **Gotcha**: Austrian Ministry of Social Affairs (BMSGPK) can still require market-entry disclosure in specific cases.

France 🇫🇷

- **Notification**: **Required** (pre-market). Submit to DGCCRF's Télélcare system. Required information: full composition, target population, risk groups, label sample. No fee.
- **Language**: French mandatory — minimum label, website at checkout.
- **Botanical list**: Arrêté du 24 juin 2014 (Plants Decree) — France has its own positive/negative plants list with specific conditions. Some substances permitted in Germany may be restricted in France and vice versa.
- **Gotcha**: France tends to take a stricter view on botanicals — Ashwagandha flagged by ANSES but still legal as of 2026.

Italy 🇮🇹

- **Notification**: **Required**. Ministero della Salute via portal. A label must be submitted in Italian; product categorized per Italian positive list.
- **Language**: Italian mandatory.
- **Fee**: Approximately €160.20 per product notification (vs. Germany's free notification).
- **Botanical list**: Italy maintains its own "Lista Ministero" of permitted botanicals (includes cranberry, broader than some EU peers).
- **Enforcement**: NAS (Carabinieri health unit) active — Italian supplement seizures for non-notified products are routine. Fines ~€6,000 per non-notified SKU reported.

Netherlands 🇳🇱

- **Notification**: **Not required** — Netherlands doesn't exercise the Art. 10 option.
- **Language**: Dutch mandatory on labels (local language requirement via labeling rules) and website at point of sale.
- **NVWA** oversees; relatively streamlined. Botanical tolerance is moderate.
- **Gotcha**: Language is the real friction — Dutch-language labels add SKU complexity.

Belgium (Belfrit cooperation)

- Belgium shares a botanical list with France and Italy (the "BELFRIT" list). This is practically useful for supplement brands because it provides a harmonized botanical framework across three major markets.

Other major markets (summary)

- **Spain**: notification required via AESAN
- **Poland**: notification required via GIS
- **Portugal**: notification via DGAV
- **Nordic (Sweden, Denmark, Finland)**: varies; Sweden no notification, Denmark banned Ashwagandha (April 2023) — stricter on botanicals

Language labeling rule of thumb

Most EU Member States require the **local official language** on the label. Stickering can work for smaller volumes but risks professional-finish criticism. For Phase 2 own-brand, bilingual or multi-panel labels are the norm (e.g., DE/FR/IT/NL on one pack for a pan-EU SKU).

Claims language

Authorized health claims exist in all 24 official EU languages — the official translations are part of the Register. Use the official translation, not a brand retranslation.

Sources: - ARROWS — EU Food Supplement Compliance - Freyr Solutions — EU food supplement registration - ComplianceGate — Supplement regulations EU overview - NutraIngredients — Italian supplement seizure cross-border - Elitepharm — Regulation of food supplements Europe

6. VAT OSS — One Stop Shop for EU E-Commerce

The €10,000 distance-selling threshold

Since 1 July 2021, a single pan-EU threshold of **€10,000/year** replaced the old country-specific distance-selling thresholds. This threshold applies to the combined total of B2C distance sales of goods + TBE services to consumers in other EU countries.

Below €10,000/year: VAT charged at the home country rate (Germany 7% for capsules, 19% for liquids). Optional early registration for OSS.

Above €10,000/year: The "place of supply" shifts to the customer's country. Alche must charge the destination country's VAT rate on every cross-border sale. Options: 1. Register locally for VAT in every destination country (complex, expensive) 2. **Use the Union OSS** — single quarterly VAT return via BZSt Online-Portal (BOP), covering all EU B2C distance sales

How OSS works for Alche

1. Register for OSS via BZSt **before** exceeding the threshold (registration must be done prospectively)
2. Alche continues to charge the destination country's VAT on cross-border B2C orders
3. Every quarter, file one OSS return listing all sales broken down by destination country and VAT rate
4. Pay VAT in one lump sum in EUR to the BZSt; BZSt distributes to other Member States

What's NOT covered by OSS

- **B2B sales** (these use reverse charge with customer's VAT ID)
- **Sales where stock is held in another EU country** — if Alche stores inventory in France via a 3PL, Alche must VAT-register in France separately (OSS does not cover "domestic sales from local stock"). This is **critical for 3PL decisions**.
- Excise goods (alcohol), new means of transport

2026 landscape

- Threshold remains €10,000 — confirmed stable for 2026
- EU small shipment changes: the €150 customs de-minimis for non-EU imports is being reformed; a €3 flat-fee per e-commerce shipment under €150 is being discussed; an EU-wide handling fee expected by 1 November 2026 latest
- **ViDA package** (VAT in the Digital Age) — phased through 2030–2035, introduces digital reporting, platform economy changes; not a 2026 change for OSS itself

Practical guidance for Alche

- Register for OSS **from day one** of EU cross-border launch — even below threshold. Avoids mid-year price/tax changes and gives consumers local-VAT pricing from the start (better conversion).
- Use Shopify's or a similar platform's built-in OSS mode which auto-calculates destination VAT.
- Keep stock in **Germany only** for Phase 1 — multi-country warehousing triggers additional local VAT registrations.

Sources: - European Commission — VAT One Stop Shop - Norman Finance — OSS 2026 Guide - VATupdate — EU B2C distance sales rules - Progress Holding — VAT OSS 2026 - Amavat — VAT OSS threshold explained

---

7. Green Claims Directive + Empowering Consumers Directive (September 2026)

Green Claims Directive (GCD) — currently paused

- Proposed 2023 to regulate substantiation of environmental claims across EU.
- **20 June 2025** — European Commission announced intention to withdraw the proposal, after EPP (largest European Parliament group) and Italy withdrew support. Main objection: inclusion of micro-enterprises and bureaucratic costs.
- Status (April 2026): not formally withdrawn, but negotiations stalled. Unlikely to enter force in 2026.

Empowering Consumers for the Green Transition Directive (ECGT / EmpCo) — IS entering force September 2026

Despite the GCD pause, the related **Empowering Consumers Directive** is binding: - Member States must transpose into national law by **March 2026** - Enforcement begins **27 September 2026** - Amends the Unfair Commercial Practices Directive (UCPD) — adds new prohibited practices to the blacklist

What becomes prohibited on 27 September 2026

1. **Generic environmental claims** without substantiation — "environmentally friendly", "climate friendly", "green", "biodegradable", "eco", "sustainable", "clean" — banned unless backed by demonstrable, relevant, certified performance.
2. **"Climate neutral" / "CO2 neutral"** product claims based on carbon offsetting — flat-out banned.
3. Sustainability **labels not based on a recognised certification scheme** or public-authority-established scheme — prohibited.
4. Claims of "durability" / "reparability" without evidence.
5. Presenting a product feature required by law as distinctive.

What Alche can still say (with substantiation)

- Specific, verifiable claims: "packaging made of 30% recycled plastic" (with supplier cert)
- Recognized certifications: EU Ecolabel, EU Organic logo, FSC, Blauer Engel
- Supplier-backed, auditable facts (e.g., "glass bottle, recyclable in Germany")

Impact on "clean supplement" positioning

- The Alche positioning needs **audit-proof**, **specific** substantiation for any environmental claim.
- Words like "clean", "pure", "natural" are not automatically banned but become enforcement targets when they imply environmental attributes without evidence.
- "Clean" as "free from synthetic fillers" is a product/ingredient claim — still subject to Art. 7 LMIV (no misleading info) and Reg. 1924/2006 if it suggests health benefit.

Transition provisions

- **No transitional period after 27 September 2026** for existing packaging/claims in the supply chain — practical options (stickers, supplementary info) allowed for existing stock.
- Enforcement: fines (national penalties), cease & desist orders, removal of non-compliant claims from market.

Commission Guidance Q&A

The European Commission has published a detailed Q&A guidance document on how to interpret and apply these rules. Application is limited to **B2C** practices; **B2B** commercial practices fall outside the scope.

Sources: - European Commission — Green claims - Latham & Watkins — European Commission intent to withdraw GCD - Inside Energy & Environment — New Green Claims Guidance Dec 2025 - Green Initiative — EU Green Claims Directive what companies need to know 2026 - MHC — Greenwashing update on Green Claims Directive

---

8. DSGVO for Cross-Border Wellness Users

The short version

DSGVO / GDPR is directly applicable in all EU Member States. The same **Art. 9 (special category data, including health)** rules described in the Germany file apply across every country Alche ships to.

One-Stop-Shop mechanism

As a German-established controller, Alche's **lead supervisory authority** is the **Berlin Beauftragte für Datenschutz und Informationsfreiheit (BlnBDI)**. Under Art. 56 GDPR, this authority handles cross-border complaints as lead, even if the data subject is in France/Italy/Netherlands. Local data subjects can file with their own authority, but the case is coordinated through Berlin.

Language and transparency

- Privacy notices should be available in the language of the consumer market. German + English minimum; add FR/IT/NL for those markets in Phase 2.

- **Right to information (Art. 13/14)** — must disclose in a language the user understands.

Cross-border data transfers

- Within EEA: free flow.
- To third countries (US, UK, etc.): requires adequacy decision, Standard Contractual Clauses (SCC), or other Art. 46 safeguards.
- **US**: EU-US Data Privacy Framework (DPF) currently in force — valid basis for transfers to DPF-certified US entities. **Schrems III risk** — a future CJEU invalidation would force a rapid move to SCCs + Transfer Impact Assessment (TIA).
- **UK**: Post-Brexit adequacy decision in force (reviewed 2025, extended).

Cookie / tracking compliance

- **ePrivacy Directive** (national implementations — e.g., TDDDG in Germany) requires **opt-in consent for non-essential cookies and tracking**, separately from GDPR consent for personal data processing.
- For cross-border users, cookie banners must respect the local language and consent standards. Most CMPs (Cookiebot, OneTrust, Usercentrics) handle this automatically.

National supplements to GDPR

Member States can add stricter rules for health data under Art. 9(4): - Germany: BDSG, plus GDNG (Gesundheitsdatennutzungsgesetz) for research contexts - France: CNIL-specific rules, MR-003/MR-004 reference methodologies for health research - Italy: Codice Privacy with specific Garante guidance on health data

Monitor the national regulator guidance for each target market.

Practical guidance

- Build one consent architecture that meets the **strictest** EU standard (explicit, granular, withdrawable, separate per purpose).
- Data Processing Agreements (Art. 28 AVV) with every processor — 3PL, email provider, analytics, AI vendors.
- DSFA for any feature involving health data regardless of jurisdiction.
- Appoint an **EU representative (Art. 27)** if Alche expands non-EU. Not needed if Germany-established.

Sources: - DSGVO Art. 9 — dejure - Datenschutz-Notizen — CJEU Art. 9 interpretation - MUNAS — DSGVO and health data practical guide

---

9. EU Cross-Border — Top 3 Risks for the Pitch

1. **France/Italy notification + botanical lists.** €160/SKU in Italy, mandatory Télélcare filing in France, national positive/negative botanical lists that diverge from Germany. Phase 2 EU rollout costs a realistic €500–€2,000 per SKU per country in notification + relabeling + legal review.
2. **Local stock = local VAT registration.** If Alche uses a 3PL warehouse outside Germany (e.g., Poland for cost reasons, Netherlands for ShipBob), local VAT registration is required — OSS alone is insufficient. Phase 1 recommendation: Germany-only stock.
3. **Empowering Consumers Directive 27 September 2026.** Generic “clean”, “natural”, “sustainable” marketing claims become enforcement targets; specific substantiation required. Audit marketing copy and packaging pre-September.

---

10. Action Checklist — Cross-Border Expansion

- [ ] OSS registration via BZSt before first cross-border B2C sale
- [ ] Language strategy: German first, add FR/IT/NL as target markets expand
- [ ] Country-by-country notification: France (Télélcare), Italy (Ministero della Salute), Austria/Netherlands (none required but check per SKU)
- [ ] Verify every SKU against France Arrêté du 24 juin 2014 and Italian positive list before shipping
- [ ] Single claims list pre-approved from EU Register, translated into official EU translations for each language
- [ ] Avoid generic environmental claims in copy by August 2026 (pre-ECGT enforcement)
- [ ] Consent architecture compliant with Art. 9 standards across all EU markets
- [ ] Privacy notice and cookie consent localized for FR/IT/NL launches

- [ ] Food-law Fachanwalt + local counsel consultation in France and Italy pre-launch